

From: MCCARTHY, Maryanne Maryanne.MCCARTHY@ndiscommission.gov.au
Subject: FOI (36)20/21-4 [SEC=OFFICIAL:Sensitive]
Date: 24 May 2021 at 3:21 pm
To: rich@richmclean.com.au



Dear Dr McLean

Thank you for clarifying your FOI request to the NDIS Commission. We have sent the request onto FOI at NDIA and we note you have also sent your email to FOI at the NDIA.

I understand that the NDIA FOI section will be in contact with you about those parts of your request that are matters best dealt with by the NDIA.

Your request

"In my FOI:

- 1) Documents relate to why someone in NDIS/NDIA told a plan manager I dot have permission to charge my 'therapy other' rate, ie who was it? Why?
- 2) One of my clients hand funding review, I have been involved in. Why was I removed from further reviews?
- 3) Why does NDIS/NDIS not accept I am 'employed ' by them for composure purposes when I have an advance payment from NDIA for covid?
- 4) Whether NDIA thinks I have qualifications for work I do, if not why not
- 5) Documents mention my name.business www.richmclean.com.au and complaints made about me?
- 6) My former partner worked for ASIO and promised to 'ruin ' me he promised an threatened to call NDIS / NDIA to deregister me-any record?
- 7) Any thing related to my work
- 8) if insolvency and incarceration exonerates me from working for the NDIS?"

Matters that the NDIS Commission can deal with as an FOI request

From the NDIS Commission perspective the NDIS Commission can deal with parts 5, 6 and 7 of your request as an FOI request.

We will search for any documents held by the NDIS Commission relating to complaints or reportable incidents that have been made about you by any person.

The NDIS Commission may also hold registration documents about you. We will search for those.

Noting if we do hold any documents that meet your request we will need to have a decision made under the FOI Act as to whether or not those documents if they exist can be released to you.

Could you please advise by email whether or not that approach is acceptable to you?

Points 3 and 8

In respect of point 3 we can advise that the NDIS Commission does not have an employment relationship with NDIS workers or providers.

In respect of point 8 we will seek information for you about whether insolvency and incarceration are issues for your registration as a worker or provider with the NDIS Commission or provide a contact for you to discuss that with.

Thanks Maryanne

Maryanne McCarthy
Legal Project Co-ordinator



NDIS Quality
and Safeguards
Commission

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www.ndiscommission.gov.au
[Your Guide to OGC](#)

Note: This email and any attachments may contain confidential or legally privileged information (and neither are waived or lost if this email has been sent to you by mistake). If you are not the intended recipient, you must not use, disclose, copy or retain it. If you have received it in error, please let me know by reply email and then delete this email from your system and do not retain any copy. Recipients within the NDIS Commission should seek assistance from General Counsel before disseminating this email to third parties or using this advice for a different matter.

The NDIS Quality and Safeguards Commission acknowledges the traditional owners of country throughout Australia and their continuing connection to land, sea and community. We pay our respects to them and their cultures, and to elders both past and present.

From: Dr Rich Mclean <rich@richmclean.com.au>

Sent: Thursday, 20 May 2021 7:31 PM

To: Advisory_Service@worksafe.vic.gov.au; Ndia. Review <ndia.review@ndis.gov.au>; NDIA - FOI <foi@ndis.gov.au>; FOI (NDIS Commission) <FOI@ndiscommission.gov.au>

Subject: Re: GT47 - Re: Claim 1326583/1[SEC=OFFICIAL:Sensitive] ATT Amie in Claims

Dear Cassandra, and NDIA, and WorkSafe,

This is a question for work safe and an FOI request for NDIS/NIA/NDIS Commission.

CommCare are refusing to acknowledge I am covered by them. (Amy),

However, they gave me a claim number and then a link to ask me to fill in a form, including details of the psychological injury.

If I am approved by CommCare, does this mean I am covered by 'WorkCover'? Or 'Worksafe'? As such?

What do you suggest I do now, coming from you at work safe who oversee workcover, whom I have made recordings of from saying 'every worker is covered', if I am rejected by Commsure?

The NDIA pay my wage, therefore they are my employer, wouldn't you agree? I have an advance payment below from NDIA. (During COVID with a registration number).

Here is proof: they gave me an advance payment in COVID that I did not request.

It confirms my employer framed by the COVID crisis - is the NDIA.

Thanks in advance for your response.

Please also see my FOI below

Dear Pascal, (NDIA), and also to the NDIS,

Thanks for your call.

In my FOI please release:

- 1) Documents relate to why someone in NDIS/NDIA told a plan manager I don't have permission to charge my 'therapy other' rate, ie who was it? Why?
- 2) One of my clients hand funding review, I have been involved in. Why was I removed from further reviews?
- 3) Why does NDIS/NDIS not accept I am 'employed' by them for compliance purposes when I have an advance payment from NDIA for covid?
- 4) Whether NDIA thinks I have qualifications for work I do, if not why not?

5) Documents mention my name.business www.richmclean.com.au and complaints made about me or my role?

6) My former partner worked for ASIO and promised to 'ruin ' me he promised an threatened to call NDIS / NDIA to deregister me-any record of this?

7) Any thing related to my work or my person (Both NDIS and NDIA please).

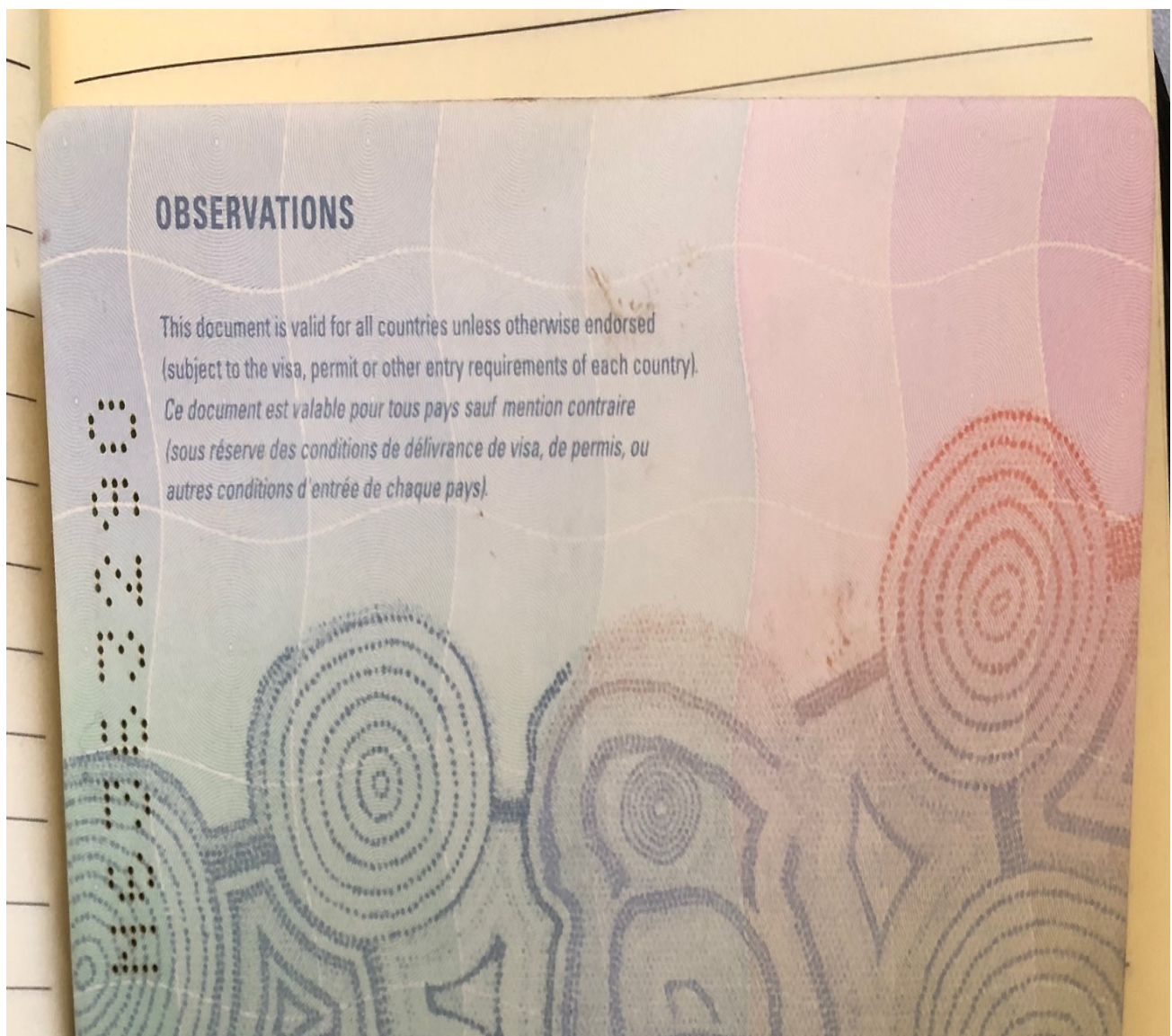
8) if insolvency and incarceration exonerates me from working for the NDIS? Or NDIA? Or being registered?

Thanks, please forward to NDIA as well for an FOI request to them.

I will await your receipt and feedback.

Kindly

Rich



On 18 May 2021, at 9:52 am, Advisory_Service@worksafe.vic.gov.au wrote:

Hi Rich,

Thank you for contacting WorkSafe Advisory.

As per your email I can see your claim is managed by CommCare.

Please liaise with CommCare for any queries you have with the claim process.

Kind Regards

Cassandra

Cassandra
Advisor

info@worksafe.vic.gov.au
Tel/ 1800 136 089 or
9641 1444

Head Office, 1 Malop
Street
Geelong VIC 3220
www.worksafe.vic.gov.au

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Whilst the Advisory Service endeavours to provide accurate information and advice, all advice provided is based on the information received in your email and should not be assumed to apply to other situations or circumstances. Please consider the application of the advice to your individual circumstances, taking into account any relevant statutory obligation or duty, before acting upon it.

BE GREEN, READ FROM THE SCREEN

<graycol.gif>Dr Rich Mclean ---13/05/2021 01:24:33 PM--- Dear Commcare, and Workcover... Is this claim assessed?

From: Dr Rich Mclean <rich@richmclean.com.au>
To: Rich McLean <rich@richmclean.com.au>, general.enquiries@comcare.gov.au, advisory_service, Advisory_Service/Public_Affairs/VWA@WorkCover
Date: 13/05/2021 01:24 PM
Subject: Re: Claim 1326583/1[SEC=OFFICIAL::Sensitive] ATT Amie in Claims

Dear Commcare, and Workcover...

Is this claim assessed?

What is the process?

I spoke with someone at workcover and they said I am insured somewhere...

and they said I am a sole trader and I am not covered by commcare...

Workcover has pointed me again in your direction...

I want to stipulate that I am a registered provider with the NDIS as a registered provider, and I invoice directly to PRODA which is a government agency.

I want to determine quite urgently if despite being a sole trader if I get paid by the NDIS does that mean or not mean I am employable and our insured by Commcare?

This has come to my attention recently when my private insurer has rejected me outright unless I have a same claim with workcover.

Workcover has referred me to Commcare.

Can Amy please call me back, or even better, can she email me back please defining how within legislation I am NOT insured with commcare, and if not, what will I tell workcover?

TIA

Rich

Dr Rich McLean

Phd, MeD, BFA, Ass Dip CAD

P : (+61) 0400 639 248

E: rich@richmclean.com.au

Web: www.richmclean.com.au

Rich is a registered NDIS Therapeutic Support Provider, as an Artist-Life-Coach, Author, & Advocate, in Melbourne.

I acknowledge the Indigenous people as the Traditional Custodians of the lands where we live, learn and work.

‘The bad news is - nothing is permanent, however the good news is - nothing is permanent.’

NDIS Registered Provider ID: 4050046572

ABN: 72066207615

Advisory_Service@worksafe.vic.gov.au

On 8 May 2021, at 1:57 pm, Dr Rich Mclean <rich@richmclean.com.au> wrote:

Dear Commcare,

Firstly I apologise for being cranky on the phone if I was to my case manager.

Its been such a stressful time - my apologies.

I was wondering if I may be called Monday after 12 midday with an update?

Otherwise I'll try and call

Kindly

Rich McLean

On 6 May 2021, at 12:03 pm, General.Enquiries <Enquiries.General@comcare.gov.au> wrote:

Dear Dr McLean

We are writing to you to inform you that we have received your workers' compensation claim. For your reference, your claim number is: 1326583/1 which will be used throughout the claim process.

What you need to know

A Comcare claims manager will contact you within the next business day by phone.

During this initial contact, the claims manager will discuss your claim and the claims process. They may also request additional information to help progress your claim. You will also have the opportunity to ask questions and learn more about the claim process.

Your claims manager is here to support you through the claims process.

Claim assessment

Following the initial contact, your claim will be assessed, and you will be informed if your claim has been accepted.

If your claim is accepted:

- you will have access to medical and health treatments and services that are evidence based and will best support your recovery
- any treatment you do have will include clear recovery goals and ongoing measurement of your progress; and
- staying in or returning to good work will be part of your overall recovery and return to health as far as possible.

If your claim is not accepted, we will explain our decision. We will also inform you how you can get the decision reviewed and we will suggest other support services that are available to you.

Contact us

If you have any questions before your claims manager contacts you or you need support to communicate with us, please:

- [Email general.enquiries@comcare.gov.au](mailto:general.enquiries@comcare.gov.au) and quote your claim number in the subject line.
- Call our Contact Centre on 1300 366 979, Monday to Friday between 8.30 am and 5 pm AEST. Remember to have your claim number handy.
- If you need an interpreter to speak with us, call the Translation and Interpreting Service (TIS National) on 131 450.
- If you are deaf, or have a hearing or speech impairment, contact us through the National Relay Service (NRS) on 133 677 and ask for 1300 366 979.
- If you would like to have a family member or representative communicate with us on your behalf, complete the Authority to Act on Employee's Behalf form and return it to general.enquiries@comcare.gov.au.

If you would like to provide us with feedback, please send an email to mailbox.feedback@comcare.gov.au or call us on 1300 366 979.

Your privacy

Your privacy is important to us and we are committed to the highest standards of privacy when we collect, store, use or disclose your personal information while we manage your claim. You can find more information about the steps we take to protect your privacy, or view our Privacy Policy, on our website.

A claims manager will be in contact with you soon. In the meantime, please visit our Comcare website for more information.

Thank you

Comcare

1300 366 979

Sensitive: This document may contain sensitive information as defined under Section 6 of the Privacy Act.

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